

## **NOTICE OF INTENT TO AWARD A SOLE SOURCE CONTRACT**

Requirement Title: FARO Arm Proprietary Maintenance, Calibration, and Repair Services

Solicitation Number: W91CRB26QA007

NAICS Code: 811210 – Electronic and Precision Equipment Repair and Maintenance

Product Service Code (PSC): J066 – Maintenance, Repair, and Rebuilding of Equipment: Instruments and Laboratory Equipment

### **1. Notice Description**

The U.S. Army Contracting Command-Aberdeen Proving Ground (ACC-APG) intends to award a Firm-Fixed-Price (FFP) contract on a sole-source basis to FARO Technologies, Inc. (Commercial and Government Entity (CAGE) Code: 0VGY2).

This requirement is for comprehensive tiered warranty coverage and Original Equipment Manufacturer (OEM)-certified calibration services for a fleet of 26 FARO instruments. The resultant contract is anticipated to have a 12-month base period, four (4) 12-month option periods, and a total estimated value of \$555,627.67.

### **2. Statutory Authority**

This acquisition is being conducted under the authority of 10 U.S.C. 3204(a)(1), as implemented by RFO FAR 6.103-1, Only one responsible source and no other supplies or services will satisfy agency requirements. This action will use the commercial product and commercial service procedures of RFO FAR Part 12.

### **3. Justification for Sole Source**

FARO Technologies, Inc. is the OEM and is the only source capable of meeting the Government's requirement.

- **Proprietary Rights:** FARO possesses exclusive proprietary rights to the internal firmware, diagnostic software, and adjustment algorithms required to restore the equipment to original factory specifications.
- **Warranty Preservation:** Service by unauthorized third-party vendors will result in the immediate forfeiture of the existing manufacturer warranty.
- **Authorization:** There are no third-party service providers authorized or certified by the OEM to perform the required factory-level certification tasks.

### **4. Response Information**

This notice of intent is not a request for competitive proposals. A formal solicitation will not be issued. However, the Government will consider all capability statements from responsible sources received within ten (10) calendar days of this notice's publication.

Interested parties must provide clear and convincing documentation that they are an OEM-authorized source with access to the proprietary data and a certified ability to perform the services without voiding the Government's warranty. A determination by the Government not to compete this proposed action is solely within the discretion of the Government.

#### **5. Point of Contact**

All inquiries and capability statements must be submitted in writing to the Contract Specialist, Jennifer Langrehr, at [jennifer.b.langrehr.civ@army.mil](mailto:jennifer.b.langrehr.civ@army.mil), and the Contracting Officer, Tanya D. Buttner, at [tanya.d.buttner.civ@army.mil](mailto:tanya.d.buttner.civ@army.mil). The subject line for all correspondence should reference the solicitation number W91CRB26QA007.